

Haridwar Gupta v. State of U.P.

Allahabad High Court · Division Bench · 13 September 2019 · Writ-C No. 28788 of 2019 · Writ-C No. 28788 of 2019 · **Writ disposed; petitioner relegated to Clause 6.5 representation, to be considered in accordance with law.**

HEADNOTE

A writ petition merely disputing an electricity bill is not entertained where the consumer has an alternative remedy of representation before the appropriate authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005, and thereafter of approaching the Consumer Grievance Redressal Forum and the Electricity Ombudsman. The High Court disposed of the petition with liberty to apply under Clause 6.5 within three weeks; the authority was directed to consider and dispose of that representation in accordance with law within six weeks.

FACTUAL SUMMARY

Haridwar Gupta filed a writ petition in the Allahabad High Court disputing an electricity bill. Counsel for the electricity respondents (respondent Nos. 2 to 4) raised a preliminary objection that the petitioner had an alternative remedy of representation before the appropriate authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005, and thereafter of approaching the Consumer Grievance Redressal Forum and the Electricity Ombudsman. The Court heard both sides and disposed of the petition on that objection without examining the disputed assessment on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

alternative remedy for disputed bill

HOLDING

Where a consumer invokes the writ jurisdiction only to dispute an electricity bill, the existence of a representation before the appropriate authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005, and of a further remedy before the Consumer Grievance Redressal Forum and the Electricity Ombudsman against the order passed thereunder, is a sufficient alternative remedy. The writ is disposed of with liberty to apply under Clause 6.5 within a stipulated time, and the authority is directed to consider and dispose of that representation in accordance with law within a further stipulated period, without a merits decision on the bill. ¶ 1

PRINCIPLE TAGS

bill-correctness-under-clause-6.5-not-cgrf-or-ombudsman

The Court accepted the licensee's objection that a bill dispute must first be represented under Clause 6.5; CGRF and the Ombudsman are sequential remedies against the Clause 6.5 order, not the first forum for the writ petitioner. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISPUTED ELECTRICITY BILL OR ASSESSMENT

The writ was disposed of on the alternative-remedy objection; the Court did not examine the bill on merits. ¶ 1